

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Squad #11	CCRB Case #: 201508826	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/16/2015 12:27 AM	Location of Incident: 105 Riverdale Avenue	Precinct: 73	18 Mo. SOL 4/16/2017	EO SOL 4/16/2017	
Date/Time CV Reported Fri, 10/16/2015 2:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/16/2015 2:28 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Denisha Pierre	12632	930398	PBBN SU
2. POM David Mercado	11610	952007	PBBN SU
3. SGT Ricardo Otero	02825	925867	PBBN SU

Officer(s)	Allegation	Investigator Recommendation
A.SGT Ricardo Otero	Abuse: Sgt. Ricardo Otero stopped § 87(2)(b) and § 87(2)(b)	
B.POF Denisha Pierre	Abuse: PO Denisha Pierre stopped § 87(2)(b) and § 87(2)(b)	
C.POM David Mercado	Abuse: PO David Mercado stopped § 87(2)(b) and § 87(2)(b)	
D.POM David Mercado	Abuse: PO David Mercado frisked § 87(2)(b)	
E.POM David Mercado	Abuse: PO David Mercado searched § 87(2)(b)	
F.POF Denisha Pierre	Abuse: PO Denisha Pierre frisked § 87(2)(b)	
G.POF Denisha Pierre	Abuse: PO Denisha Pierre searched § 87(2)(b)	
H.POF Denisha Pierre	Abuse: PO Denisha Pierre searched the bag belonging to § 87(2)(b)	
I.SGT Ricardo Otero	Abuse: Sgt. Ricardo Otero searched § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On October 16, 2015, at approximately 12:27 a.m., § 87(2)(b) and § 87(2)(b) left the China City restaurant located at 790 Saratoga Avenue in Brooklyn and had walked a few blocks away to 105 Riverdale Avenue when a grey unmarked vehicle crossed the line of traffic and stopped in front them. Sgt. Ricardo Otero, PO Denisha Pierre, and PO David Mercado, all of Patrol Borough Brooklyn North, exited the vehicle (**Allegation A-C**). Sgt. Otero asked them where they were going and in response, § 87(2)(b) and § 87(2)(b) all raised their hands and stated, “We don’t consent to any search or seizures.” PO Mercado patted down § 87(2)(b)’s armpits, front torso area, legs and around his waist (**Allegation D**). He then grabbed § 87(2)(b)’s pants waistband, reached into his undergarments and felt around (**Allegation F**). PO Pierre asked § 87(2)(b) if she had anything that could hurt her and patted down her armpits, front torso, and legs (**Allegation F**). PO Pierre then shook § 87(2)(b)’s bra through her t-shirt, pulled § 87(2)(b)’s waistband, reached into her pants, and felt between her pants and her undergarments (**Allegation G**). PO Pierre also grabbed and looked inside the bag that § 87(2)(b) was holding (**Allegation H**). Sgt. Otero searched § 87(2)(b) (**Allegation I**). The officers returned to their vehicle without arresting, summoning or providing the civilians with any documentation or an explanation as to why they were stopped.

§ 87(4-b) § 87(2)(g)

This case is over 90 days old because the initial NYPD license plate check provided the incorrect command. Once the correct command was identified, it took forty-eight days to receive the documents that were necessary to identify the subject officers.

There is no video evidence for this case.

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) rejected mediation.
- Neither § 87(2)(b) nor § 87(2)(b) filed a Notice of Claim (see Board Review 16).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officers CCRB Histories

- This is § 87(2)(b) and § 87(2)(b)’s first CCRB complaint (see Board Review 14 and 15).
- Sgt. Otero has been a member of service for 15 years. In case 200703968, stop and/or question, frisk and search allegations were closed as complaint withdrawn. In case 201403724, a frisk allegation was unsubstantiated § 87(4-b), § 87(2)(g)
- PO Mercado has been a member of service for 4 years. § 87(4-b), § 87(2)(g)
- PO Pierre has been a member of service for 13 years.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) described the officers' vehicle as an unmarked grey Chevy Malibu and provided the vehicle's license plate § 87(2)(e), § 87(2)(g). The NYPD Fleet Services Division revealed through a phone call and a document request that the license plate matched a grey 2010 Chevy Impala that was assigned to the Brooklyn North Auto Larceny Unit (see Board Review 11). Once it was determined the vehicle was assigned to Patrol Borough Brooklyn North Specialized Unit, the vehicle was identified as RMP number 345 (see 10 Board Review) The Daily Vehicle Assignment Sheet listed Sgt. Otero, PO Mercado and PO Pierre as the officers assigned to RMP 345 on the date of the incident (see Board Review 04), which was further verified by Sgt. Otero's memo book (see Board Review 01) and the movement log (see Board Review 02).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Although the officers stated that they were not within the confines of the 73rd Precinct during their patrol, they could not provide an explanation as to what they were doing or where they were specifically within the 88th Precinct. The officers' memo books do confirm that they were assigned to the 88th Precinct; § 87(2)(g) [REDACTED]
[REDACTED] the officers do not have any memo book entries documenting what happened during their patrol. Additionally, no police documentation could be found to refresh the officers' memories of the incident or provide an alternative explanation as to where they were or what they were doing during the incident time.

The Patrol Borough Brooklyn North Specialized Unit base is at 653 Grand Avenue in Brooklyn, within the confines of the 77th Precinct. The 88th Precinct borders the 77th Precinct on the northwest boundary, and the 73rd Precinct borders the 77th Precinct on the east boundary, so both the 88th Precinct and the 73rd Precinct are on the boundary of the 77th Precinct, where the home base of PBBN SU is located (see Board Review 18).

§ 87(2)(b) stated in his interview at the CCRB that he took a photograph of the license plate during the incident. He did not have the photograph with him at the time of the interview, but stated that once he had it, he would email it. On October 22, 2015, and January 13, 2016, § 87(2)(b) was emailed and asked to provide the photograph. He did not respond and never provided the photograph.

§ 87(2)(b) and § 87(2)(b) described the officer that interacted with § 87(2)(b) as the taller male with the darker complexion of the two male officers. § 87(2)(g) the physical pedigree of PO Mercado who is a Hispanic male, 6'1" tall, and 225 pounds with black hair. § 87(2)(g) [REDACTED]

§ 87(2)(b) described the officer that she interacted with as a black female, 5'9" tall, medium build, long hair in a ponytail, who appeared to be in her thirties. § 87(2)(g) the physical pedigree of PO Pierre who is a black female, 5'8" tall, and 190 pounds with black hair. She was § 87(2)(b) old at the time of the incident. § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b) stated that the officer who interacted with § 87(2)(b) was the shorter and lighter complexion of the two male officers. § 87(2)(g) the physical pedigree of Sgt.

Otero who is a Hispanic male, 5'8" tall, 200 pounds, with brown hair. § 87(2)(g)

Potential Issues

§ 87(2)(b) was unavailable to the investigation (see Board Review 21).

Recommendations

Allegation A-Abuse of Authority: Sgt. Ricardo Otero stopped § 87(2)(b)

and § 87(2)(b)

Allegation B-Abuse of Authority: PO Denisha Pierre stopped § 87(2)(b)

and § 87(2)(b)

Allegation C-Abuse of Authority: PO David Mercado stopped § 87(2)(b)

and § 87(2)(b)

Allegation D-Abuse of Authority: PO David Mercado frisked § 87(2)(b)

Allegation E-Abuse of Authority: PO David Mercado searched § 87(2)(b)

Allegation F-Abuse of Authority: PO Denisha Pierre frisked § 87(2)(b)

Allegation G-Abuse of Authority: PO Denisha Pierre searched § 87(2)(b)

Allegation H-Abuse of Authority: PO Denisha Pierre searched the bag belonging to § 87(2)(b)

Allegation I -Abuse of Authority: Sgt. Ricardo Otero searched § 87(2)(b)

§ 87(2)(b) stated that after he left China City restaurant with § 87(2)(b) and § 87(2)(b) they walked down Saratoga Avenue and onto Riverdale Avenue. They were not under the influence of any drugs or alcohol, did not make any stops, did not look into any cars or buildings and did not talk to anyone besides each other. § 87(2)(b) observed a grey unmarked Chevy Malibu driving on the other side of the road, driving in the same direction that they were walking. Sgt. Otero yelled out of the window, "Are you good?" In response, all three yelled back, "yeah." Approximately three seconds later, the vehicle crossed the line of traffic and stopped in front of them. Three officers exited the vehicle and Sgt. Otero asked them where they were going. In response, § 87(2)(b) and § 87(2)(b) put their hands in the air and stated "We don't consent to any search and seizures." PO Mercado first patted down § 87(2)(b)'s armpits, front torso area, waist and his legs. He did not reach into his pockets or remove any items. § 87(2)(b) only had a cell phone and wallet in his pockets. PO Mercado then grabbed the waistband of § 87(2)(b)'s track pants, reached into his undergarments and felt around his private area. § 87(2)(b)'s undergarments were never exposed and his pants were never pulled down. § 87(2)(b) could not see § 87(2)(b) or § 87(2)(b) because they were behind him and he was facing the opposite direction.

§ 87(2)(b) corroborated § 87(2)(b)'s testimony that the officers asked if they were good and that the civilians stated that they did not consent to searches or seizures when the officers approached, and that § 87(2)(b) was in front of her. § 87(2)(b) stated that PO Pierre approached her and asked if she had anything that could hurt anybody. § 87(2)(b) responded by telling her that she did not. PO Pierre patted down her armpits, front torso and her front and back pants pockets on the right and left side. She did not reach into any of her pockets. PO Pierre also patted down § 87(2)(b) on her chest, where her bra was underneath her t-shirt, and pulled on her bra through her t-shirt, without lifting her shirt or exposing the bra. PO Pierre then pulled § 87(2)(b)'s waistband, reached into her pants and patted her undergarments on the front and on the sides. She never reached into her undergarments. Once she removed her hands from § 87(2)(b)'s

pants, PO Pierre noticed that § 87(2)(b) was holding an egg roll wrapped in a small black grocery bag in her right hand. PO Pierre grabbed the bag and asked her was it was. When § 87(2)(b) did not respond, PO Pierre looked inside the bag and then immediately returned it back to her and said, “Oh just checking.” § 87(2)(b) observed PO Mercado begin to search § 87(2)(b) and Sgt. Otero begin to search § 87(2)(b) but did not pay close enough attention to see where they searched specifically.

Neither civilian stated that their identification was obtained during the incident, and no warrant checks were performed during this incident (see Board Review 20).

Sgt. Otero, PO Pierre and PO Mercado all testified that they were on patrol during the time of the incident, but none of them recalled this incident, even after being shown photographs of § 87(2)(b) and § 87(2)(b) and being provided with a synopsis of the incident. All three officers testified that they were within the confines of the 88th Precinct because additional police presence was requested and denied being within the 73rd Precinct during their tour. The officers did not know where they were within the 88th Precinct specifically or what they were doing while on patrol other than driving around. They denied stopping, frisking, or searching or any civilians on the date of the incident.

Sgt. Otero’s memo book (see Board Review 01) shows that at 8:00 p.m., he began patrol in RMP 345 with PO Mercado and PO Pierre. The next entry shows that he went end of tour at 2:10 a.m. PO Mercado’s memo book (see 13 Board Review) shows that at 5:45 p.m., he was assigned to the 88th Precinct with PO Pierre and Sgt. Otero. His next entry shows that he went end of tour at 2:05 a.m. PO Pierre’s memo book (see Board Review 12) shows that at 8:30 p.m., she was on patrol with Sgt. Otero and PO Mercado. She returned to the command at 3:00 a.m. and went end of tour at 3:05 a.m.

To justify a stop, an officer must have reasonable suspicion that a crime is at hand. To justify a frisk, an officer must have reasonable suspicion that the person is armed. To justify a search, an officer must have probable cause to believe that the person has committed a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (07 Board Review). In People v. Wilder, 38 A.D.3d 312 (2007), the court determined that when an officer had “overwhelming evidence of guilt” that the defendant was involved an assault, the search of the plastic bags the man was holding was justified (see Board Review 05).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[illegible]

[REDACTED]

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
 Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date